



**DEPARTMENT OF DEFENSE
WASHINGTON HEADQUARTERS SERVICES
1155 DEFENSE PENTAGON
WASHINGTON, DC 20301-1155**



Control No. WHS-2025-1611-JA

April 4, 2025

**JUSTIFICATION FOR
OTHER THAN FULL AND OPEN COMPETITION (JOFOC)
UNDER FEDERAL ACQUISITION REGULATION FAR SUBPART 6.3**

1. **AGENCY AND CONTRACTING ACTIVITY:** The Department of Defense (DoD), Washington Headquarters Services, Acquisition Directorate (WHS/AD), Enterprise Research & Engineer Directorate (ERED), Technical Analysis Branch (TAB) on behalf of the National Guard Youth Challenge Program (NGYCP) and DoD STARBASE Program.
2. **DESCRIPTION OF ACTION:** The NGYCP and DoD STARBASE Program has a continuing need for Training, Assistance and Assessment Support. These services are currently supported under Contract HQ0034-19-C-0178, which was awarded to The Spectrum Group Members LLC (Spectrum). The current contract expires March 26, 2025. The Government intends to extend the current contract Period of Performance (POP) for continuity of services while the Government works to award a long-term contract. This action continues providing required support services to the Office of the Assistant secretary of Defense for Manpower and Reserve Affairs (Reserve Integration) (OASD/M&RA(RI)). Therefore, this extension will be required to continue services while the Government completes its source selection process. The extension will be awarded as a hybrid contract, with Firm-Fixed Price (FFP) and Time and Material (T&M) Contract Line-Item Number (CLINs), with a total value of \$1,095,361.28, using Fiscal Year 25 Operation and Maintenance Funds. The POP will be extended from March 27, 2025, to June 27, 2025.
3. **DESCRIPTION OF SUPPLIES/SERVICES:** The NGYCP and DoD STARBASE Program has a requirement to develop and implement training, assistance and assessment support services to increase the enrollment, retention, and graduation rates of NGYCPs. Additionally, support training, evaluation and assessment of the DoD STARTBASE Program by implementing a programmatic reporting mechanism, by assisting with the professional development of program staff, reviewing program lesson plans, by enhancing the program's strategic communications and outreach plan, by recommending strategies and developing best practices for enhancing performance of DoD STARBASE Program sites, by supporting existing and new afterschool outreach programs and by supporting new sites that are anticipated to be added each year.

Controlled by: WHS
Controlled by: Acquisition Directorate
CUI Category(ies): SP-PROCURE
Limited Dissemination Control: FEDCON
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The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform services as defined in the contract Performance Work Statement (PWS), except for those items specified as government-furnished property and services. The Contractor shall perform to the standards in the contract.

4. AUTHORITY CITED: This action is authorized under provisions of 10 U.S.C. 2304(c) as implemented by Federal Acquisition Regulation (FAR) 6.302-1(a)(2)(iii), “*Only one responsible source and no other supplies or services will satisfy agency requirements*”.

Failure to extend these services and losing the support and expertise of the Spectrum contract team would result in incalculable delays that would derail or halt progress on efforts across OASD/M&RA(RI). These delays would impact the NGYCP and the DoD STARBASE Program’s on-going efforts to provide Training, Assistance and Assessment Support Services. In addition, these delays would impact efforts involving budget and manpower causing the department to suspend training support to 47 NGYCP and policy and budget oversight to 90 DoD STARBASE program locations, which ensures the safety and welfare of over 150,000 youth annually.

The incumbent is currently providing the necessary personnel trained on the required processes, procedures, and regulations and possess the technical acumen to meet OASD/M&RA(RI) requirements for this short period. To compete this requirement at this time would cause unacceptable delays in fulfilling OASD/M&RA(RI) requirements and substantial duplication of cost to the government of estimated \$1.696 Million (see the cost breakdown below) that is not expected to be recovered through competition. A new vendor would have a significant learning curve of at least 3-months to fundamentally understand the work progress made by the incumbent and the delays in hiring the appropriate staff. The Government would incur significant onboarding, training, and knowledge transfer costs to reach the current incumbent’s level of expertise. We estimate the following cost breakdown:

- **Onboarding and training:** Is based on average time to fill 18 staffers training each, opportunity cost during the learning curve period.
- **Knowledge transfer:** \$188,423.42 (based current staff of 18 to document work and transfer knowledge for both the NGYCP and the DOD STARBASE programs respectively)
- **Opportunity costs:** \$753,693.68 (if the remaining 2-months are exercised the cost is \$376,846.84 for each month) this amount is based on financial risk due to at a minimum 30-days delayed ability to address national regulatory issues arising from key U.S. regulatory bodies, executive branch agencies. The ability to provide research and advice to develop and advance strategy that addresses the devolving regulatory environment,)

Based on the cost breakdown above it is essential for the mission to continue during the recompetit solicitation phase for training, assistance, and assessment support. This extension of services will allow work to continue while proposals are evaluated, and a new contract is

awarded. This extension will also allow for a phase-in of a new vendor, if necessary, when the new contract is awarded.

EFFORTS TO OBTAIN COMPETITION: On March 3, 2025, WHS/AD issued a Notice of Intent (NOI) to Sole Source on SAM.gov. The NOI was posted for a week and closed on March 10, 2025. No feedback or responses were received from industry in response to the NOI.

FAIR AND REASONABLE COST DETERMINATION: The Contracting Officer determines that the anticipated prices will be fair and reasonable by using the techniques identified at FAR 15.404-1, “*Proposal Analysis Techniques*” to ensure award will be at fair and reasonable prices. In addition, the Government will compare proposed prices set forth by Spectrum to historical prices paid by the Government under the current contract, HQ0034-19-C-0178. The Government will also compare proposed prices with the Independent Government Cost Estimate prepared for the extension.

MARKET RESEARCH: Market Research has been limited to the NOI to sole source this action and was posted on SAM.gov as described in paragraph 5, above. WHS/AD will solicit this effort as three 1-month option periods, sole source extension contract to Spectrum in order to maintain continuity of support being provided to OASD/M&RA(RI). The contract extension is the most efficient and logical strategy and solution to the Government, to avoid unacceptable delays in fulfilling the agency’s requirement and a potential gap in performance of critical services to OASD/M&RA(RI).

OTHER FACTS: Due to the irreparable damage that may result to OASD/M&RA(RI's) mission should services be interrupted; a sole source contract will be negotiated with Spectrum. Spectrum has been critically instrumental to the success and continuation of OASD/M&RA(RI's) mission.

INTERESTED SOURCES: The synopsis NOI posted on SAM.gov did not receive any interest, feedback, or challenges from other sources.

ACTIONS TO INCREASE COMPETITION: WHS/AD is actively working with OASD/M&RA(RI) in the new effort undergoing a competitive source selection process. This procurement is for a long-term follow-on contract and intends to award the follow-on contract by third quarter FY25.

Is this acquisition for a non-competitive follow-on acquisition previously awarded on a non-competitive basis?

☐ Yes. A copy of the previous justification is attached. The actions to remove any barriers to competition cited on the previous justification ☐ were ☐ were not completed.

☒ No. The original acquisition was conducted on a competitive basis.

☐ Not Applicable. This is a new requirement.

CERTIFICATION

I, hereby, certify that the supporting data under my cognizance included in this justification are accurate and complete to the best of my knowledge and belief.

Michael, O'Toole
Contracting Officer Representative/Program Office

Date

Aubrey McKinney
Contracting Officer

Date

APPROVAL

This justification is, approved.

David H. Kao
Competition Advocate

Date